

23SMCV06070 23SMCV06070

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Case Number: 23SMCV06070 Hearing Date: August 26, 2026 Dept: M

CASE NAME: Krieger, et al., v. Aharoni, et al.

CASE NO.: 23SMCV06070

MOTION: Demurrer to the Second Amended Complaint

HEARING DATE: 8/26/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v.

Mirza (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts

read the allegations liberally and in context. In a demurrer proceeding, the

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968,

994.) A demurrer tests the pleadings alone and not the evidence or other

extrinsic matters. Therefore, it lies only where the defects appear on the face

of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the

pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); Khoury v. Maly’s of Calif., Inc.

(1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect

has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th

1217, 1227.) It is an abuse of discretion for the court to deny leave to amend

where there is any reasonable possibility that plaintiff can state a good cause

of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is

on plaintiff to show in what manner plaintiff can amend the complaint,

and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendants Jay Lee and

Melrose Auto Repair Corp. demur to the cause of action stated against them in

Plaintiffs Helen Krieger, Joseph Meissner, John Taft, Wyatt Lowther, Lorinda

Dedominic, and Ilene Novack's Second Amended Complaint ("SAC").

Defendants'

request for judicial notice is GRANTED. While notice is granted, the truth of

the hearsay facts stated within the noticed documents are not taken.

Defendants

argue that the SAC fails to state a claim for negligence, including the

elements of duty. To plead a cause of action for negligence, one must allege

(1) a legal duty owed to plaintiffs to use due care; (2) breach of duty; (3)

causation; and (4) damage to plaintiff. (County of Santa Clara v. Atlantic

Richfield Co. (2006) 137 Cal. App. 4th 292, 318.) "In order to state a

cause of action for negligence, the complaint must allege facts sufficient to

show a legal duty on the part of the defendant to use due care, a breach of

such legal duty, and the breach as the proximate or legal cause of the resulting

injury." (Bellah v. Greenson (1978) 81 Cal.App.3d 614, 619.) In California, negligence may be pleaded in

general terms. (Landeros v. Flood (1976) 17 Cal.3d 399, 407-408.) There are limits to the generality with which a plaintiff is permitted to state his cause of action, "plaintiff must indicate the acts or omissions which are said to have been negligently performed. He may not recover upon the bare statement that the defendant's negligence has caused him injury." (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 527.) There is no requirement that plaintiff identify and allege the precise moment of the injury or the exact nature of the wrongful act. (Hahn, supra, 147 Cal.App.4th at 747.)

As to the demurring Defendants, the SAC alleges that they "owned, leased, controlled, possessed, repaired, maintained, and/or inspected the vehicle and/or vehicles from which the fire originated in the resulting Incident."

(SAC ¶ 33.) The incident caused damage to the subject real property, including Plaintiffs' units. (Id., ¶ 34.) The SAC further states that Defendants had a duty of reasonable care to Plaintiffs with respect to the ownership, operation, control, maintenance, inspection, and/or repair of the vehicle and/or vehicles that were the alleged point of origin for the fire involved in the Incident.

(Id., ¶ 161.) Defendants breached that duty of care by owning, operating, controlling, maintaining, inspecting, and/or repairing the vehicle and or vehicles involved in the Incident in a negligent, careless and/or reckless manner. (Id., ¶ 162.)

The SAC fails to state sufficient facts to support the

negligence claim. The SAC does not expressly or generally allege that Defendants negligently repaired/failed to repair the subject vehicle. The SAC does not actually allege that Defendants' negligence contributed to the fire in any way. The SAC's further allegations concerning negligence only apply to the Landlord defendants. (SAC ¶¶ 163-166.) Thus, the SAC lacks even general facts supporting the elements of breach or causation against Defendants. In opposition, Plaintiff cites to the duties of a repairman to third parties. (Seo v. All-Makes Overhead Doors (2002) 97 Cal.App.4th 1193, 1202.) However, the SAC does not allege facts that Defendants (1) negligently performed repairs causing the third party's injury; (2) negligently failed to make a requested repair; (3) contracted with the owner to inspect and maintain the equipment and failed to do so or to do so properly; or (4) voluntarily assumed the owner's duty to inspect and maintain the safety of the equipment or undertook a systematic inspection of the equipment and failed to do so or to do so properly. (Ibid.) Instead, the SAC only alleges that Defendants owned/repaired/maintained and/or inspected the vehicle, and that the fire originated in the vehicle. But there are no allegations that Defendants' actions or inactions (such as a negligent repair or failure to repair) contributed or caused the fire. Thus, further facts are required.

Additionally, Melrose argues

that judicially noticeable facts show that it was not in existence at the time of the alleged loss. Indeed, the loss caused by the vehicle(s) occurred in February 2023. (SAC ¶ 32.) Melrose came into existence in 2024. (RJN, Ex. 2.) In opposition, Plaintiffs assert that there may be successor liability. (See CenterPoint Energy, Inc. v. Superior Court (San Francisco) (2007) 157 Cal.App.4th 1101, 1120 [a successor corporation may be liable for losses incurred prior to their incorporation under certain circumstances, including where the successor corporation is a mere continuation of the predecessor, or the transfer of assets to the successor is for the fraudulent purpose of escaping liability for the predecessor's debts].) The SAC alleges a conclusion that all Defendants are successors/successors-in-interest of the other defendants. (SAC ¶ 21.) The SAC offers no facts concerning Melrose's successor status.

Accordingly, Defendants' demurrer is SUSTAINED with 20 days leave to amend.